

ROBERTS, C. J., dissenting

Woodward v. De Graffenried, 238 U. S. 284, 297 (1915). Instead, a few “enterprising citizens” of the Tribes “appropriate[d] to their exclusive use almost the entire property of the Territory that could be rendered profitable.” *Id.*, at 297, 299, n. 1 (internal quotation marks omitted). As a result, “the poorer class of Indians [were] unable to secure enough lands for houses and farms,” and “the great body of the tribe derive[d] no more benefit from their title than the neighbors in Kansas, Arkansas, or Missouri.” *Id.*, at 299–301, n. 1 (emphasis deleted; internal quotation marks omitted).

Attuned to these new realities, Congress decided that it could not maintain an Indian Territory predicated on “exclusion of the Indians from the whites.” S. Rep. No. 377, at 6. Congress therefore set about transforming the Indian Territory into a State.

Congress began by establishing a uniform body of law applicable to all occupants of the territory, regardless of race. To apply these laws, Congress established the U. S. Courts for the Indian Territory. Next Congress systematically dismantled the tribal governments. It abolished tribal courts, hollowed out tribal lawmaking power, and stripped tribal taxing authority. Congress also eliminated the foundation of tribal sovereignty, extinguishing the Creek Nation’s title to the lands. Finally, Congress made the tribe members citizens of the United States and incorporated them in the drafting and ratification of the constitution for their new State, Oklahoma.

In taking these transformative steps, Congress made no secret of its intentions. It created a commission tasked with extinguishing the Five Tribes’ territory and, in one report after another, explained that it was creating a homogenous population led by a common government. That contemporaneous understanding was shared by the tribal leadership and the State of Oklahoma. The tribal leadership acknowledged that its only remaining power was to parcel out the last of

ROBERTS, C. J., dissenting

its land, and the State assumed jurisdiction over criminal cases that, if a reservation had continued to exist, would have belonged in federal court.

A century of practice confirms that the Five Tribes' prior domains were extinguished. The State has maintained unquestioned jurisdiction for more than 100 years. Tribe members make up less than 10%–15% of the population of their former domain, and until a few years ago the Creek Nation itself acknowledged that it no longer possessed the reservation the Court discovers today. This on-the-ground reality is enshrined throughout the U. S. Code, which repeatedly terms the Five Tribes' prior holdings the “former” Indian reservations in Oklahoma. As the Tribes, the State, and Congress have recognized from the outset, those “reservations were destroyed” when “Oklahoma entered the union.” S. Rep. No. 101–216, pt. 2, p. 47 (1989).

II

Much of this important context is missing from the Court's opinion, for the Court restricts itself to viewing each of the statutes enacted by Congress in a vacuum. That approach is wholly inconsistent with our precedents on reservation disestablishment, which require a highly contextual inquiry. Our “touchstone” is congressional “purpose” or “intent.” *South Dakota v. Yankton Sioux Tribe*, 522 U. S. 329, 343 (1998). To “decipher Congress' intention” in this specialized area, we are instructed to consider three categories of evidence: the relevant Acts passed by Congress; the contemporaneous understanding of those Acts and the historical context surrounding their passage; and the subsequent understanding of the status of the reservation and the pattern of settlement there. *Solem v. Bartlett*, 465 U. S. 463, 470–472 (1984). The Court resists calling these “steps,” because “the only ‘step’ proper for a court of law” is interpreting the laws enacted by Congress. *Ante*, at 913–914. Any

ROBERTS, C. J., dissenting

label is fine with us. What matters is that these are categories of evidence that our precedents “direct[] us” to examine *in determining* whether the laws enacted by Congress disestablished a reservation. *Hagen v. Utah*, 510 U. S. 399, 410–411 (1994). Because those precedents are not followed by the Court today, it is necessary to describe several at length.²

In *Solem v. Bartlett*, 465 U. S. 463 (1984), a unanimous Court summarized the appropriate methodology. “Congress [must] clearly evince an intent to change boundaries before diminishment will be found.” *Id.*, at 470 (internal quotation marks and alterations omitted). This inquiry first considers the “statutory language used to open the Indian lands,” which is the “most probative evidence of congressional intent.” *Ibid.* “Explicit reference to cession or other language evidencing the present and total surrender of all tribal interests strongly suggests that Congress meant to divest from the reservation all unallotted opened lands.” *Ibid.* But “explicit language of cession and unconditional compensation are not prerequisites” for a finding of disestablishment. *Id.*, at 471.

Second, we consider “events surrounding the passage of [an] Act—particularly the manner in which the transaction was negotiated with the tribes involved and the tenor of legislative Reports presented to Congress.” *Ibid.* When such materials “unequivocally reveal a widely held, contemporaneous understanding that the affected reservation would shrink as a result of the proposed legislation,” we will “infer that Congress shared the understanding that its action

² Our precedents have generally considered whether Congress disestablished or diminished a reservation by enacting “surplus land Acts” that opened land to non-Indian settlement. Here Congress did much more than that, as I will explain. Even so, there is broad agreement among the parties, the United States, the Creek Nation, and even the Court that our precedents on surplus land Acts provide the governing framework for this case, so I proceed on the same course. See Brief for Petitioner 1; Brief for Respondent 29, 35, 40; Brief for United States as *Amicus Curiae* 4–5; Brief for Muscogee (Creek) Nation as *Amicus Curiae* 1–2; *ante*, at 903–904, 914–915.

ROBERTS, C. J., dissenting

would diminish the reservation,” even in the face of “statutory language that would otherwise suggest reservation boundaries remained unchanged.” *Ibid.*

Third, to a “lesser extent,” we examine “events that occurred after the passage of [an] Act to decipher Congress’ intentions.” *Ibid.* “Congress’ own treatment of the affected areas, particularly in the years immediately following the opening, has some evidentiary value, as does the manner in which the Bureau of Indian Affairs and local judicial authorities dealt with [the areas].” *Ibid.* In addition, “we have recognized that who actually moved onto opened reservation lands is also relevant.” *Ibid.* “Where non-Indian settlers flooded into the opened portion of a reservation and the area has long since lost its Indian character, we have acknowledged that *de facto*, if not *de jure*, diminishment may have occurred.” *Ibid.* This “subsequent demographic history” provides an “additional clue as to what Congress expected would happen.” *Id.*, at 471–472.

Fifteen years later, another unanimous Court described the same methodology more pithily in *South Dakota v. Yankton Sioux Tribe*, 522 U. S. 329 (1998). First, the Court reiterated that the “most probative evidence of diminishment is, of course, the statutory language.” *Id.*, at 344 (internal quotation marks omitted). The Court continued that it would also consider, second, “the historical context surrounding the passage of the . . . Acts,” and third, “the subsequent treatment of the area in question and the pattern of settlement there.” *Ibid.* (quoting *Hagen*, 510 U. S., at 411).

The Court today treats these precedents as aging relics in need of “clarif[ication].” *Ante*, at 915. But these precedents have been clear enough for some time. Just a few Terms ago, the same inquiry was described as “well settled” by the unanimous Court in *Nebraska v. Parker*, 577 U. S. 481, 487 (2016). First, the Court explained, “we start with the statutory text.” *Id.*, at 488. “Under our precedents,” the Court continued, “we also ‘examine all the circumstances surrounding the opening of a reservation.’” *Ibid.* (quoting *Hagen*,

ROBERTS, C. J., dissenting

510 U.S., at 412). Thus, second and third, we “look to any unequivocal evidence of the contemporaneous and subsequent understanding of the status of the reservation by members and nonmembers, as well as the United States and the State.” 577 U.S., at 488 (internal quotation marks omitted). These inquiries include, respectively, the “history surrounding the passage of the [relevant] Act” as well as the subsequent “demographic history” and “treatment” of the lands at issue. *Id.*, at 490, 492.

Today the Court does not even discuss the governing approach reiterated throughout these precedents. The Court briefly recites the general rule that disestablishment requires clear congressional “intent,” *ante*, at 904, but the Court then declines to examine the categories of evidence that our precedents demand we consider. Instead, the Court argues at length that allotment alone is not enough to disestablish a reservation. *Ante*, at 904–908. Then the Court argues that the “many” “serious blows” dealt by Congress to tribal governance, and the creation of the new State of Oklahoma, are each insufficient for disestablishment. *Ante*, at 909–913. Then the Court emphasizes that “historical practices or current demographics” do not “by themselves” “suffice” to disestablish a reservation. *Ante*, at 913–914.

This is a school of red herrings. No one here contends that any individual congressional action or piece of evidence, standing alone, disestablished the Creek reservation. Rather, Oklahoma contends that all of the relevant Acts of Congress together, viewed in light of contemporaneous and subsequent contextual evidence, demonstrate Congress’s intent to disestablish the reservation. “[O]ur traditional approach . . . requires us” to determine Congress’s intent by “examin[ing] *all* the circumstances surrounding the opening of a reservation.” *Hagen*, 510 U.S., at 412 (emphasis added). Yet the Court refuses to confront the cumulative import of all of Congress’s actions here.

The Court instead announces a new approach sharply restricting consideration of contemporaneous and subsequent

ROBERTS, C. J., dissenting

evidence of congressional intent. The Court states that such “extratextual sources” may be considered in “only” one narrow circumstance: to help “‘clear up’” ambiguity in a particular “statutory term or phrase.” *Ante*, at 914, 916 (quoting *Milner v. Department of Navy*, 562 U. S. 562, 574 (2011), and citing *New Prime Inc. v. Oliveira*, 586 U. S. 105, 113 (2019)).

But, if that is the right approach, what have we been doing all these years? Every single one of our disestablishment cases has considered extratextual sources, and in doing so, none has required the identification of ambiguity in a particular term. That is because, while it is well established that Congress’s “intent” must be “clear,” *ante*, at 916 (quoting *Yankton Sioux Tribe*, 522 U. S., at 343), in this area we have expressly held that the appropriate inquiry does not focus on the statutory text alone.

Today the Court suggests that only the text can satisfy the longstanding requirement that Congress “explicitly indicate[]” its intent. *Ante*, at 916 (quoting *Solem*, 465 U. S., at 470). The Court reiterates that a reservation persists unless Congress “said otherwise,” *ante*, at 898; if Congress wishes to disestablish a reservation, “it must say so,” with the right “language.” *Ante*, at 904, 914; see *ante*, at 937 (same). Our precedents disagree. They explain that disestablishment can occur “[e]ven in the absence of a clear expression of congressional purpose in the text of [the] Act.” *Yankton Sioux Tribe*, 522 U. S., at 351. The “notion” that “express language in an Act is the *only* method by which congressional action may result in disestablishment” is “quite inconsistent” with our precedents. *Rosebud Sioux Tribe v. Kneip*, 430 U. S. 584, 586, 588, n. 4 (1977); see *Solem*, 465 U. S., at 471 (intent may be discerned from a “widely held, contemporaneous understanding,” “notwithstanding the presence of statutory language that would otherwise suggest reservation boundaries remained unchanged”); see also *DeCoteau v. District County Court for Tenth Judicial Dist.*, 420 U. S. 425, 444 (1975); *Mattz v. Arnett*, 412 U. S. 481, 505 (1973).

ROBERTS, C. J., dissenting

These are not “stitch[e]d together quotes” but rather plain language reflecting a consistent theme running through our precedents. *Ante*, at 916, n. 9. They make clear that the Court errs in focusing on whether “a statute” alone “required” disestablishment, *ante*, at 916; under these precedents, we cannot determine what Congress “required” without first considering evidence in addition to the relevant statutes. Oddly, the Court claims these precedents actually support its new approach because they “emphasize that [t]he focus of our inquiry is congressional intent.” *Ante*, at 916–917, n. 9 (quoting *Rosebud Sioux Tribe*, 430 U. S., at 588, n. 4, and citing *Yankton Sioux Tribe*, 522 U. S., at 343). But in this context that intent is determined by examining a broad array of evidence—“all the circumstances.” *Parker*, 577 U. S., at 488 (quoting *Hagen*, 510 U. S., at 412). Unless the Court is prepared to overrule these precedents, it should follow them.

The Court appears skeptical of these precedents, but does not address the compelling reasons they give for considering extratextual evidence. At the turn of the century, the possibility that a reservation might persist in the absence of “tribal ownership” of the underlying lands was “unfamiliar,” and the prevailing “assumption” was that “Indian reservations were a thing of the past.” *Solem*, 465 U. S., at 468. Congress believed “to a man” that “within a short time” the “Indian tribes would enter traditional American society and the reservation system would cease to exist.” *Ibid.* As a result, Congress—while intending disestablishment—did not always “detail” precise changes to reservation boundaries. *Ibid.* Recognizing this distinctive backdrop, our precedents determine Congress’s intent by considering a broader variety of evidence than we might for more run-of-the-mill questions of statutory interpretation. See *id.*, at 468–469; *Parker*, 577 U. S., at 488; *Yankton Sioux Tribe*, 522 U. S., at 343. See also Cohen § 2.02(1), at 113 (“The theory and prac-

ROBERTS, C. J., dissenting

tice of interpretation in federal Indian law differs from that of other fields of law.”).

The Court next claims that *Parker* “clarif[ied]” that evidence of the subsequent treatment of the disputed land by government officials “‘has limited interpretive value.’” *Ante*, at 915 (quoting *Parker*, 577 U. S., at 493). But *Parker* held that the subsequent evidence *in that case* “ha[d] ‘limited interpretive value,’” as in the case that *Parker* relied on. *Id.*, at 493 (quoting *Yankton Sioux Tribe*, 522 U. S., at 355). The adequacy of evidence in a particular case says nothing about whether our precedents require us to consider such evidence in others.³

The Court finally resorts to torching strawmen. No one relying on our precedents contends that “practical advantages” require “ignoring the written law.” *Ante*, at 923. No one claims a State has “authority to reduce federal reservations.” *Ante*, at 903. No one says the role of courts is to “sav[e] the political branches” from “embarrassment.” *Ibid.* No one argues that courts can “adjust[]” reservation borders. *Ibid.* Such notions have nothing to do with our precedents. What our precedents do provide is the settled approach for determining whether Congress disestablished a

³The Court rejects this reading of *Parker* based on a quotation that ends with what sounds like a general principle that “[e]vidence of the subsequent treatment of the disputed land by Government officials likewise has ‘limited interpretive value.’” *Ante*, at 915, n. 8 (quoting *Parker*, 577 U. S., at 493). But that sentence was actually the topic sentence of a new paragraph that addressed the *particular* evidence of subsequent treatment of the *particular* land by the *particular* government officials in that case. *Id.*, at 493. It is clear that *Parker* merely concluded that the evidence cited by the parties provided a “mixed record of subsequent treatment” that did not move the needle either way. *Ibid.* (internal quotation marks omitted). *Parker* did not silently overturn our precedents requiring us to consider—and accord “weight” to—subsequent evidence that plainly favors, or undermines, disestablishment. *Rosebud Sioux Tribe v. Kneip*, 430 U. S. 584, 604 (1977); see *supra*, at 943–946.

ROBERTS, C. J., dissenting

reservation, and the Court starkly departs from that approach here.

III

Applied properly, our precedents demonstrate that Congress disestablished any reservation possessed by the Creek Nation through a relentless series of statutes leading up to Oklahoma statehood.

A

The statutory texts are the “most probative evidence” of congressional intent. *Parker*, 577 U.S., at 488 (quoting *Hagen*, 510 U.S., at 411). The Court appropriately examines the Original Creek Agreement of 1901 and a subsequent statute for language of disestablishment, such as “cession,” “abolish[ing]” the reservation, “restor[ing]” land to the “public domain,” or an “unconditional commitment” to “compensate” the Tribe. *Ante*, at 904–908 (internal quotation marks omitted). But that is only the beginning of the analysis; there is no “magic words” requirement for disestablishment, and each individual statute may not be considered in isolation. See *supra*, at 947–948; *Hagen*, 510 U.S., at 411, 415–416 (when two statutes “buil[d]” on one another in this area, “[both] statutes—as well as those that came in between—must therefore be read together”); see also *Rosebud Sioux Tribe*, 430 U.S., at 592 (recognizing that a statute “cannot, and should not, be read as if it were the first time Congress had addressed itself to” disestablishment when prior statutes also indicate congressional intent). In this area, “we are not free to say to Congress: ‘We see what you are driving at, but you have not said it, and therefore we shall go on as before.’” *Id.*, at 597 (quoting *Johnson v. United States*, 163 F.3d, 32 (CA1 1908) (Holmes, J.)). Rather, we recognize that the language Congress uses to accomplish its objective is adapted to the circumstances it confronts.

For example, “cession” is generally what a tribe does when it conveys land to a fellow sovereign, such as the United States or another tribe. See *Mitchel v. United States*, 9 Pet. 711, 734 (1835); *e.g.*, 1856 Treaty, Art. I, 11 Stat. 699. But

ROBERTS, C. J., dissenting

here, given that Congress sought direct allotment to tribe members in order to enable private ownership by both Indians and the 300,000 settlers in the territory, it would have made little sense to “cede” the lands to the United States or “restore” the lands to the “public domain,” as Congress did on other occasions. So too with a “commitment” to “compensate” the Tribe. Rather than buying land from the Creek, Congress provided for allotment to tribe members who could then “sell their land to Indians and non-Indians alike.” *Ante*, at 905–906; see *Hagen*, 510 U. S., at 412 (a “definite payment” is not required for disestablishment). That other allotment statutes have contained various “hallmarks” of disestablishment tells us little about Congress’s intent here. *Contra, ante*, at 908, and n. 5. “[W]e have never required any particular form of words” to disestablish a reservation. *Hagen*, 510 U. S., at 411. There are good reasons the statutes here do not include the language the Court looks for, and those reasons have nothing to do with a failure to disestablish the reservation. Respect for Congress’s work requires us to look at what it actually did, not search in vain for what it might have done or did on other occasions.

What Congress actually did here was enact a series of statutes beginning in 1890 and culminating with Oklahoma statehood that (1) established a uniform legal system for Indians and non-Indians alike; (2) dismantled the Creek government; (3) extinguished the Creek Nation’s title to the lands at issue; and (4) incorporated the Creek members into a new political community—the State of Oklahoma. These statutes evince Congress’s intent to terminate the reservation and create a new State in its place.

First, Congress supplanted the Creek legal system with a legal code and court system that applied equally to Indians and non-Indians. In 1890, Congress subjected the Indian Territory to specified federal criminal laws. Act of May 2, 1890, § 31, 26 Stat. 96. For offenses not covered by federal law, Congress did what it often did when establishing a new territorial government. It provided that the criminal laws

ROBERTS, C. J., dissenting

from a neighboring State, here Arkansas, would apply. § 33, *id.*, at 96–97. Seven years later, Congress provided that the laws of the United States and Arkansas “shall apply to *all* persons” in Indian Territory, “*irrespective of race.*” Act of June 7, 1897 (1897 Act), 30 Stat. 83 (emphasis added). In the same Act, Congress conferred on the U. S. Courts for the Indian Territory “exclusive jurisdiction” over “all civil causes in law and equity” and “all criminal causes” for the punishment of offenses committed by “any person” in the Indian Territory. *Ibid.*

The following year, the 1898 Curtis Act “abolished” all tribal courts, prohibited all officers of such courts from exercising “any authority” to perform “any act” previously authorized by “any law,” and transferred “all civil and criminal causes then pending” to the U. S. Courts for the Indian Territory. Act of June 27, 1898 (Curtis Act), § 28, *id.*, at 504–505. In the same Act, Congress completed the shift to a uniform legal order by banning the enforcement of tribal law in the newly exclusive jurisdiction of the U. S. Courts. See § 26, *id.*, at 504 (“[T]he laws of the various tribes or nations of Indians shall not be enforced at law or in equity by the courts of the United States in the Indian Territory.”). Congress reiterated yet again in 1904 that Arkansas law “continued” to “embrace *all* persons and estates” in the territory—“whether Indian, freedmen, or otherwise.” Act of Apr. 28, 1904, ch. 1824, § 2, 33 Stat. 573 (emphasis added). In this way, Congress replaced tribal law with local law in matters at the core of tribal governance, such as inheritance and marital disputes. See, e. g., *George v. Robb*, 4 Ind. T. 61, 64 S. W. 615, 615–616 (1901); *Colbert v. Fulton*, 74 Okla. 293, 157 P. 1151, 1152 (1916).

In addition, the Curtis Act established municipalities to govern both Indians and non-Indians. It authorized “any city or town” with at least 200 residents to incorporate. § 14, 30 Stat. 499. The Act gave incorporated towns “all the powers” and “all the rights” of municipalities under Arkan-

ROBERTS, C. J., dissenting

sas law. *Ibid.* “All male inhabitants,” including Indians, were deemed qualified to vote in town elections. *Ibid.* And “all inhabitants”—“*without regard to race*”—were made subject to “all” town laws and were declared to possess “*equal rights, privileges, and protection.*” *Id.*, at 499–500 (emphasis added). These changes reorganized the approximately 150 towns in the territory—including Tulsa, Muskogee, and 23 others within the Creek Nation’s former territory—that were home to tens of thousands of people and nearly one third of the territory’s population at the time, laying the foundation for the state governance that was to come. See H. R. Doc. No. 5, 57th Cong., 2d Sess., pt. 2, pp. 299–300, Table 1 (1903); Depts. of Commerce and Labor, Bureau of Census, Population of Oklahoma and Indian Territory 1907, pp. 8, 30–33.

Second, Congress systematically dismantled the governmental authority of the Creek Nation, targeting all three branches. As noted, Congress dissolved the Tribe’s judicial system. Congress also specified in the Original Creek Agreement that the Creek government would “not continue” past March 1906, essentially preserving it only as long as Congress thought necessary for the Tribe to wind up its affairs. § 46, 31 Stat. 872. In the meantime, Congress radically curtailed tribal legislative authority, providing that no statute passed by the council of the Creek Nation affecting the Nation’s lands, money, or property would be valid unless approved by the President of the United States. § 42, *id.*, at 872. When 1906 came around, the Five Tribes Act provided for the “final disposition of the affairs of the Five Civilized Tribes.” Act of Apr. 26, 1906, ch. 1876, 34 Stat. 137. Along with “abolish[ing]” all tribal taxes, the Act directed the Secretary of the Interior to assume control over the collection of the Nation’s remaining revenues and to distribute them among tribe members on a per capita basis. §§ 11, 17, *id.*, at 141, 143–144. Thus, by the time Oklahoma became the 46th State in 1907, there was little left of the Creek Na-

ROBERTS, C. J., dissenting

tion's authority: No tribal courts. No tribal law. No tribal fisc. And any lingering authority was further reduced in 1908, when Congress amended the Five Tribes Act to require tribal officers and members to surrender all remaining tribal property, money, and records. Act of May 27, 1908, § 13, 35 Stat. 316.

The Court stresses that the Five Tribes Act separately stated that the Creek government was "continued" in "full force and effect for all purposes authorized by law." *Ante*, at 910 (quoting § 28, 34 Stat. 148). By that point, however, such "authorized" purposes were nearly nonexistent, and the Act's statement is readily explained by the need to maintain a tribal body to wrap up the distribution of Creek lands. Indeed, the Court does not cite any examples of the Creek Nation exercising significant government authority in the wake of the statutes discussed above. Instead, the Court alludes to subsequent changes in the 1920s to the general "federal outlook toward Native Americans," and it observes that in the 1930s Congress authorized the Creek Nation to reconstitute its tribal courts and adopt a constitution and bylaws. *Ante*, at 911. That, however, simply highlights the drastic extent to which Congress erased the Nation's authority at the turn of the century.

Third, Congress destroyed the foundation of sovereignty by stripping the Creek Nation of its territory. The communal title held by the Creek Nation, which "did not recognize private property in land," "presented a serious obstacle to the creation of [a] State." *Choate v. Trapp*, 224 U. S. 665, 667 (1912). Well aware of this impediment, Congress established the Dawes Commission and directed it to negotiate with the Five Tribes for "the extinguishment of the national or tribal title to any lands" within the Indian Territory. Act of Mar. 3, 1893, § 16, 27 Stat. 645. That extinguishment could be accomplished through "cession" of the tribal lands to the United States, "allotment" of the lands among the Indians, or any other agreed upon method. *Ibid.* The Com-

ROBERTS, C. J., dissenting

mission initially sought cession, but ultimately sought to extinguish the title through allotment. See *ante*, at 905.

In the Original Creek Agreement of 1901, Congress did just that. The agreement provided that “[a]ll lands belonging to the Creek tribe,” except town sites and lands reserved for schools and public buildings, “shall be allotted among the citizens of the tribe.” §§ 2, 3, 31 Stat. 862 (emphasis added). Town sites, rather than being allotted, were made available for purchase by the non-Indians residing there. §§ 11–16, *id.*, at 866–867. Unclaimed lots were to be sold at public auction, with the proceeds divvied up among the Creeks. §§ 11, 14, *id.*, at 866. The agreement required that the deeds for the allotments and town site purchases convey “all right, title, and interest of the Creek Nation and of all other [Creek] citizens,” and that the deeds be executed by the leader of the Creek Nation (the “principal chief”). § 23, *id.*, at 867–868. The conveyances were then approved by the Secretary of the Interior, who in turn “relinquish[ed] to the grantee . . . all the right, title, and interest of the United States” in the land. *Id.*, at 868. In this way, Congress provided for the complete termination of the Creek Nation’s interest in the lands, as well as the interests of individual Creek members apart from their personal allotments. Indeed, the language Congress used in the Original Creek Agreement resembles what the Court regards as model disestablishment language. See *ante*, at 904, 906 (looking for language evincing “the present and total surrender of all tribal interests in the affected lands” (internal quotation marks omitted)). And, making even more clear its intent to place Indian-held land under the same laws as all other property, Congress subsequently eliminated restrictions on the alienation of allotments, freeing tribe members “to sell their land to Indians and non-Indians alike.” *Ante*, at 905–906.

In addition, while the Original Creek Agreement did not allot lands reserved for schools and tribal buildings, the Creek Nation’s interest in those lands was subsequently ter-

ROBERTS, C. J., dissenting

minated by the Five Tribes Act. That Act directed the Secretary of the Interior to take possession of—and sell off—“all” tribal buildings and underlying lands, whether used for “governmental” or “other tribal purposes.” § 15, 34 Stat. 143. The Secretary was also ordered to assume control of all tribal schools and the underlying property until the federal or state governments established a public school system. See § 10, *id.*, at 140–141.

These statutes evince a clear intent to leave the Creek Nation with no communally held land and no meaningful governing authority to exercise over the newly distributed parcels. Contrary to the Court’s portrayal, this is not a scenario in which Congress allowed a tribe to “continue to exercise governmental functions over land” that it “no longer own[ed] communally.” *Ante*, at 907. From top to bottom, these statutes, which divested the Tribes and the United States of their interests while displacing tribal governance, “strongly suggest[] that Congress meant to divest” the lands of reservation status. *Solem*, 465 U.S., at 470.

Finally, having stripped the Creek Nation of its laws, its powers of self-governance, and its land, Congress incorporated the Nation’s members into a new political community. Congress made “every Indian” in the Oklahoma Territory a citizen of the United States in 1901—decades before conferring citizenship on all native born Indians elsewhere in the country. Act of Mar. 3, 1901, ch. 868, 31 Stat. 1447. In the Oklahoma Enabling Act of 1906—the gateway to statehood—Congress confirmed that members of the Five Tribes would participate in equal measure alongside non-Indians in the choice regarding statehood. The Act gave Indians the right to vote on delegates to a constitutional convention and ultimately on the state constitution that the delegates proposed. §§ 2, 4, 34 Stat. 268, 271. Fifteen members of the Five Tribes were elected as convention delegates, many of them served on significant committees, and a member of the Chickasaw Nation even served as president of the conven-

ROBERTS, C. J., dissenting

tion. See Brief for Seventeen Oklahoma District Attorneys et al. as *Amici Curiae* 9–13.

The Enabling Act also ensured that Indians and non-Indians would be subject to uniform laws and courts. It replaced Arkansas law, which had applied to all persons “irrespective of race,” 1897 Act, 30 Stat. 83, with the laws of the adjacent Oklahoma Territory until the new state legislature provided otherwise. Enabling Act §§ 2, 13, 21, 34 Stat. 268–269, 275, 277–278; see *Jefferson v. Fink*, 247 U.S. 288, 294 (1918). All of the pending cases in the territorial courts arising under federal law were transferred to the newly created U.S. District Courts of Oklahoma. See § 16, 34 Stat. 276. Pending cases not involving federal law, including those that involved Indians on Indian land and had arisen under Arkansas law, were transferred to the new Oklahoma state courts. §§ 16, 17, 20, *id.*, at 276–277. To dispel any potential confusion about the distribution of criminal cases, Congress amended the Enabling Act the following year, clarifying that all cases for crimes that would have fallen under federal jurisdiction had they been committed in a State would be transferred to the U.S. District Courts. Act of Mar. 4, 1907, § 1, *id.*, at 1286–1287. All other pending criminal cases would be “prosecuted to a final determination in the State courts of Oklahoma.” § 3, *id.*, at 1287. As for civil cases, the new state courts were immediately empowered to resolve even disputes that previously lay at the core of tribal self-governance. *E.g.*, *Palmer v. Cully*, 52 Okla. 454, 463–469, 153 P. 154, 157–158 (1915) (*per curiam*) (marital dispute).⁴

⁴ The Court, citing *United States v. Sandoval*, 231 U.S. 28, 47–48 (1913), argues that including a tribe within a new State is not necessarily incompatible with the continuing existence of a reservation. *Ante*, at 911–912, n. 6. But the tribe in *Sandoval*, the Pueblo Indians of New Mexico, retained a rare communal title to their lands—which Congress explicitly extinguished here. 231 U.S., at 47. More fundamentally, the Court’s argument suffers from the same flaw that runs through its entire approach,

ROBERTS, C. J., dissenting

In sum, in statute after statute, Congress made abundantly clear its intent to disestablish the Creek territory. The Court, for purposes of the disestablishment question before us, defines the Creek territory as “lands that would lie outside both the legal jurisdiction and geographic boundaries of any State” and on which a tribe was “assured a right to self-government.” *Ante*, at 902. That territory was eliminated. By establishing uniform laws for Indians and non-Indians alike in the new State of Oklahoma, Congress brought Creek members and the land on which they resided under state jurisdiction. By stripping the Creek Nation of its courts, lawmaking authority, and taxing power, Congress dismantled the tribal government. By extinguishing the Nation’s title, Congress erased the geographic boundaries that once defined Creek territory. And, by conferring citizenship on tribe members and giving them a vote in the formation of the State, Congress incorporated them into a new political community. “Under any definition,” that was disestablishment. *Ibid.*

In the face of all this, the Court claims that recognizing Congress’s intent would permit disestablishment in the absence of “a statute requir[ing] that result.” *Ante*, at 916. Hardly. The numerous statutes discussed above demonstrate Congress’s plain intent to terminate the reservation. The Court resists the cumulative force of these statutes by attacking each in isolation, first asking whether allotment alone disestablished the reservation, then whether restricting tribal governance was sufficient, and so on. But the Court does not consider the full picture of what Congress accomplished. Far from justifying its blinkered approach, the Court repeatedly tells the reader to wait until the “*next* section” of the opinion—where the Court will again nitpick discrete aspects of Congress’s disestablishment effort while

which maintains that each of Congress’s actions alone would not be enough for disestablishment but never confronts the import of all of them.

ROBERTS, C. J., dissenting

ignoring the full picture our precedents require us to honor. *Ante*, at 908–909, n. 5, 913, n. 7; see *supra*, at 948, 950.

The Court also hypothesizes that Congress may have taken significant steps toward disestablishment but ultimately could not “complete[]” it; perhaps Congress just couldn’t “muster the will” to finish the job. *Ante*, at 904, 911. The Court suggests that Congress sought to “tiptoe to the edge of disestablishment,” fearing the “embarrassment of disestablishing a reservation” but hoping that judges would “deliver the final push.” *Ante*, at 903. This is fantasy. The congressional Acts detailed above do not evince any unease about extinguishing the Creek domain, or any shortage of “will.” Quite the opposite. Through an open and concerted effort, Congress did what it set out to do: transform a reservation into a State. “Mustering the broad social consensus required to pass new legislation is a deliberately hard business,” as the Court reminds us. *Ibid.* Congress did that hard work here, enacting not one but a steady progression of major statutes. The Court today does not give effect to the cumulative significance of Congress’s actions, because Congress did not use explicit words of the sort the Court insists upon. But Congress had no reason to suppose that such words would be required of it, and this Court has held that they were not. See *Hagen*, 510 U. S., at 411–412; *Yankton Sioux Tribe*, 522 U. S., at 351; *Solem*, 465 U. S., at 471.

B

Under our precedents, we next consider the contemporaneous understanding of the statutes enacted by Congress and the subsequent treatment of the lands at issue. The Court, however, declines to consider such evidence because, in the Court’s view, the statutes clearly do not disestablish any reservation, and there is no “ambiguity” to “clear up.” *Ante*, at 916 (internal quotation marks omitted). That is not the approach demanded by our precedent, *supra*, at 946–950, and, in any event, the Court’s argument fails on its own

ROBERTS, C. J., dissenting

terms here. I find it hard to see how anyone can come away from the statutory texts detailed above with *certainty* that Congress had no intent to disestablish the territorial reservation. At the very least, the statutes leave some ambiguity, and thus “extratextual sources” ought to be consulted. *Ante*, at 916.

Turning to such sources, our precedents direct us to “examine all the circumstances” surrounding Congress’s actions. *Parker*, 577 U. S., at 488 (quoting *Hagen*, 510 U. S., at 412). This includes evidence of the “contemporaneous understanding” of the status of the reservation and the “history surrounding the passage” of the relevant Acts. *Parker*, 577 U. S., at 490 (internal quotation marks omitted); see *Yankton Sioux Tribe*, 522 U. S., at 351–354; *Solem*, 465 U. S., at 471. The available evidence overwhelmingly confirms that Congress eliminated any Creek reservation. That was the purpose identified by Congress, the Dawes Commission, and the Creek Nation itself. And that was the understanding demonstrated by the actions of Oklahoma, the United States, and the Creek.

According to reports published by Congress leading up to Oklahoma statehood, the Five Tribes had failed to hold the lands for the equal benefit of all Indians, and the tribal governments were ill equipped to handle the largescale settlement of non-Indians in the territories. See *supra*, at 941–942; *Woodward*, 238 U. S., at 296–297. The Senate Select Committee on the Five Tribes explained that it was “imperative[]” to “establish a government over [non-Indians] and Indians” in the territory “in accordance with the principles of our constitution and laws.” S. Rep. No. 377, at 12–13. On the eve of the Original Creek Agreement, the House Committee on Indian Affairs emphasized that “[t]he independent self-government of the Five Tribes ha[d] practically ceased,” “[t]he policy of the Government to abolish classes in Indian Territory and make a homogeneous population [wa]s being rapidly carried out,” and all Indians “should at once be

ROBERTS, C. J., dissenting

put upon a level and equal footing with the great population with whom they [were] intermingled.” H. R. Rep. No. 1188, 56th Cong., 1st Sess., 1 (1900).

The Dawes Commission understood Congress’s intent in the same way. The Commission explained that the “object of Congress from the beginning has been the dissolution of the tribal governments, the extinguishment of the communal or tribal title to the land, the vesting of possession and title in severalty among the citizens of the tribes, and the assimilation of the peoples and institutions of this Territory to our prevailing American standard.” H. R. Doc. No. 5, 58th Cong., 2d Sess., pt. 2, p. 5 (1903). Accordingly, the Commission’s aim—“in all [its] endeavors”—was a “uniformity of political institutions to lay the foundation for an ultimate common government.” H. R. Doc. No. 5, 56th Cong., 2d Sess., 163 (1900).

The Creek shared the same understanding. In 1893, the year Congress formed the Dawes Commission, the Creek delegation to Washington recognized that Congress’s “unwavering aim” was to “‘wipe out the line of political distinction between an Indian citizen and other citizens of the Republic’” so that the Tribe could be “‘absorbed and become a part of the United States.’” P. Porter & A. McKellop, Printed Statement of Creek Delegates, reprinted in Creek Delegation Documents 8–9 (Feb. 9, 1893) (quoting Senate Committee Report); see also S. Doc. No. 111, 54th Cong., 2d Sess., 5, 8 (1897) (resolution of the Creek Nation “recogniz[ing]” that Congress proposed to “disintegrat[e] the land of our people” and “transform[.]” “our domestic dependent states” “into a State of the Union”).

Particularly probative is the understanding of Pleasant Porter, the principal Chief of the Creek Nation. He described Congress’s decisions to the Creek people and legislature in messages published in territorial newspapers during the run-up to statehood. Following the extinguishment of the Nation’s title, dissolution of tribal courts, and curtail-